

The Petroleum and Natural Gas Regulatory Board (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006

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The Petroleum and Natural Gas Regulatory Board (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006

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The Petroleum and Natural Gas Regulatory Board (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006

Rule

THE-PETROLEUM-AND-NATURAL-GAS-REGULATORY-BOARD-SALARIES-ALLOWANCES-AND-OTHER-CONDITIONS-OF-SERVICE-OF-CHAIRPERSON-AND-MEMBERS-RULES-2006 of 2006

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The Petroleum and Natural Gas Regulatory Board (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006

Published vide Notification No. G.S.R. 570(E), 15th September, 2006

Ministry of Petroleum and Natural Gas

G.S.R. 570(E). - In exercise of the powers conferred by Sub-section (4) of Section 5 read with clause (a) of Sub-section (2) of Section 60 of the Petroleum and Natural Gas Regulatory Board Act, 2006 (19 of 2006), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Petroleum and Natural Gas Regulatory Board (Salaries, Allowances and other Conditions of Service of Chairperson and Members) Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context other wise requires, -

(a)

"Act", means the Petroleum and Natural Gas Regulatory Board Act, 2006;

(b)

"Board", means the Petroleum and Natural Gas Regulatory Board established under sub-section (1) of Section 3 of the Act;

(c)

"Chairperson", means the Chairperson of the Board appointed under Section 4 of the Act;

(d)

"Member", means a whole-time Member of the Board appointed under Section 4 of the Act;

(e)

All other words and expressions used herein and not defined but defined in the Act, shall have the Same meanings respectively as assigned to them in the Act.

3.

Salaries and allowances.

(a)

The Chairperson shall be entitled to a monthly salary of Rs. 26,000 (fixed).

(b)

The Member shall be entitled to a monthly salary in the pay scale of Rs. 22,400-525-24,500.

(c)

The Chairperson and a Member shall be entitled to draw dearness allowance and city compensatory allowance at the rate applicable to a Group 'A' officer of the Central Government drawing an equivalent pay:

Provided that in case of appointment of a person as the Chairperson or a Member who has retired from the service under Central Government or State Government and who is in receipt of, or has received or has become entitled to receive any retirement benefits by way of pension, gratuity, employers contribution to the Contributory Provident Fund or other forms of retirement benefits, the pay of such Chairperson or Member, shall be reduced by the gross amount of pension or employers contribution to the Contributory Provident Fund or any other form of retirement benefits, if any (except pension equivalent of gratuity), drawn or to be drawn by him:

Provided further that if a person who has retired from any service including service under Central Government or State Government, Public Sector Undertakings and/or Autonomous Bodies is appointed as the Chairperson or a Member, he shall be entitled to receive dearness allowance at the same rate as applicable to a Group 'A' officer of the Central Government drawing an equivalent pay, but he shall not be entitled to receive dearness relief on pension during the period he holds office as such Chairperson or a Member.

4.

Leave.

- The Chairperson and a Member shall be entitled to thirty days of earned leave for every year of service. The payment of leave salary during leave shall be governed by rule 40 of the Central Civil Service (Leave) Rules, 1972. The Chairperson and a Member shall be entitled to encashment of fifty percent of earned leave to his credit at any time.

5.

GPF or CPF, Pension and Gratuity.

- The Chairperson and Members would be governed by contributory Provident Fund Rules and no option to subscribe under GPF Rules will be available. Additional Pension and Gratuity will not be admissible for service rendered in the Regulatory Authority.

6.

Leave Travel Concession, Travelling Allowance and Daily Allowance.

- The Chairperson and a Member shall be entitled to travelling allowance and Daily allowance on tour as applicable to Government Servants drawing that basic pay and they shall also be entitled to facility of temporary Government accommodation in Guest Houses or Inspection Bungalows under the control of the Central Government, wherever applicable, on payment of normal rent at outstations, of the class to which Government Servants of equivalent pay are eligible.

7.

Medical Treatment.

- The Chairperson and a Member shall be entitled to Medical treatment and Hospital facilities as provided in the Central Government Health Service Scheme for retired Government servants and at places where the CGHS Scheme is not in operation, the Chairperson and Members who are not Government servants shall be entitled to the facilities as provided in the Central Service (Medical Attendance) Rules.

8.

Official Visits Abroad.

- The Chairperson and a Member shall be entitled to undertake official visits abroad with the prior approval of the Minister-in-charge of the Ministry of Petroleum and Natural Gas and after political clearance from the Ministry of External Affairs. The daily allowance and the provision for hotel accommodation during the period of tour abroad shall be regulated in accordance with the Government instructions as applicable from time to time to officers of equivalent pay in the Government of India and Indian Missions abroad shall take care of arrangements and extend facilities as applicable to Group "A" officers of the Central Government drawing an equivalent pay.

9.

Transport allowance.

- The Chairperson and a Member shall be eligible for fixed reimbursement of transport allowance between Rs.3,000/- and Rs.5,000/- per month as laid down by the Department of Personnel and Training from time to time for the use and maintenance of his personal car for transportation between residence and office and it shall include the salary of a driver who would not be a Government servant.

10.

Accommodation.

- The Chairperson and a Member shall be given the option of claiming House Rent Allowance @ 30% of the basic pay drawn if they stay at Delhi but no house shall be hired by the Board or allotted by the Government and in case of a satellite town surrounding the National Capital Territory of Delhi, the Chairperson and a Member shall be entitled to rented unfurnished accommodation with built-up area measuring around 350 square meters for Chairperson and 300 square meters for a Member with suitable open land area appurtenant as permissible under the regulations of the concerned municipal bodies.

11.

Oath of Officer and Secrecy.

- The Chairperson and Members shall, before entering upon their office, make and subscribe an Oath of Office and Secrecy, in the forms I and II annexed to these rules.

12.

Telephone facility, official meetings and entertainment expenses.

- The Chairperson and a Member shall be eligible for telephone facilities, official meetings and entertainment expenses as admissible to a Group "A" officer of the Central Government drawing an equivalent pay.

13.

Residuary matters.

- Matters relating to the terms and conditions of service of the Chairperson or a Member with respect to which no

express provision has been made in these rules, shall be such as are admissible to a Group "A" officer of the Central Government drawing an equivalent pay.

14.

Power to relax.

- The Central Government shall have power to relax, after recording in writing the reasons thereof, any provision of these rules in respect of Chairperson or any Member.

15.

Interpretation.

- If any question arises relating to the interpretation of these rules, the decision of the Central Government there-upon shall be final.

Form-I

(see rule 13)

Form of Oath of Office for the Chairperson and Members of the Petroleum and Natural Gas Regulatory Board

I, _____ having been appointed as the Chairperson or Member (cross out portion not applicable) solemnly affirm and do swear in the name of God that I will faithfully and conscientiously discharge my duties as the Chairperson or Member (cross out portion not applicable), of the Petroleum and Natural Gas Regulatory Board, to the best of my ability, knowledge and judgement, without fear or favour, affection or ill-will.

Dated.

(Name of the Chairperson or Member)

Petroleum and Natural Gas Regulatory Board

Form-II

(see rule 13)

Form of Oath of Secrecy for the Chairperson or Members of the Petroleum and Natural Gas Regulatory Board

I, _____ having been appointed as the Chairperson or Member (cross out portion not applicable) do solemnly affirm and swear in the name of God that I will directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as the Chairperson or Member (cross out portion not applicable), of the said Petroleum and Natural Gas Regulatory Board, except as may be required for the due discharge of my duties as the Chairperson or Member (cross out portion not applicable).

Dated:

(Name of the Chairperson/Member)

Petroleum and Natural Gas Regulatory Board

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